U.S. Citizenship and Immigration Services

Non-Precedent Decision of the Administrative Appeals Office

In Re: 43886410

Date: SEPT. 17, 2026

Appeal of U.S. Citizenship and Immigration Services (USCIS) Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner describes himself as a storyteller who seeks classification as an alien of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

Through its Service Center Operations (SCOPS), USCIS denied the Form I-140, Immigrant Petition for Alien Workers (petition), concluding the record did not establish that the Petitioner had received a major, internationally recognized award, and even though he demonstrated that he met at least three of the ten regulatory criteria, he did not warrant an approval in the final merits determination. The matter is now before us on appeal under 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify under this immigrant classification, the statute requires the filing party demonstrate:

- The alien enjoys extraordinary ability in the sciences, arts, education, business, or athletics;
- They seek to enter the country to continue working in the area of extraordinary ability; and
- The alien's entry into the United States will substantially benefit the country in the future.

Section 203(b)(1)(A)(i)–(iii) of the Act. The term "extraordinary ability" refers only to those in "that small percentage who have risen to the very top of the field of endeavor." 8 C.F.R. § 204.5(h)(2). *See also* H.R. Rep. 101-723, 59 (Sept. 19, 1990), *reprinted in* 1990 U.S.C.C.A.N. 6710, 1990 WL 200418 at *6739 (stating: "In short, admission under this category is to be reserved for that small percentage of individuals who have risen to the very top of their field of endeavor.").

The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-step analysis. In the first step, a petitioner can demonstrate international recognition of his or her achievements in the field through a one-time achievement (that is, a major, internationally recognized award). If that petitioner does not submit this evidence, then he or she must provide sufficient qualifying documentation that meets at least three of the ten criteria listed at 8 C.F.R. § 204.5(h)(3)(i)–(x) (including items such as awards, published material in certain media, and scholarly articles). The regulation at 8 C.F.R. § 204.5(h)(4) allows a petitioner to submit comparable material if he or she is able to demonstrate that the standards at 8 C.F.R. § 204.5(h)(3)(i)–(x) do not readily apply to the individual's occupation.

Where a petitioner meets these initial evidence requirements, we then move to the second step to consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115, 1121 (9th Cir. 2010) (discussing a two-step review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Amin v. Mayorkas*, 24 F.4th 383, 394 (5th Cir. 2022).

II. ANALYSIS

The Petitioner is listed as a social impact storyteller in the area of entertainment. He is also a filmmaker and video producer known for his narrative essays.

A. Evidentiary Criteria

Because the Petitioner has not indicated or established that he has received a major, internationally recognized award, he must satisfy at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i)–(x). Before SCOPS, the Petitioner claimed he met seven of the regulatory criteria. SCOPS decided that the Petitioner satisfied three of the criteria relating to published material, judging, and performing in a leading or critical role but that he had not satisfied the criteria associated with the authorship of scholarly articles, display of the Petitioner's work, a high salary or remuneration, or commercial success. On appeal, the Petitioner maintains that he meets several of the evidentiary criteria and he contests USCIS' ability to perform a require portion of the final merits determination. After reviewing all the evidence in the record, we conclude he has not demonstrated eligibility for this highly restrictive immigrant classification.

B. Final Merits Determination

As the Petitioner has submitted the requisite initial evidence we will evaluate whether he has demonstrated, by a preponderance of the evidence, his sustained national or international acclaim and that he is one of the small percentage at the very top of the field of endeavor, and that his achievements have been recognized in the field through extensive documentation. In a final merits determination, we analyze the Petitioner's accomplishments and weigh the totality of the evidence to determine if his successes are sufficient to demonstrate that he has extraordinary ability in the field of endeavor. *See* section 203(b)(1)(A)(i) of the Act; 8 C.F.R. § 204.5(h)(2), (3); *see also Kazarian*, 596 F.3d at 1119–20); *also see generally* 6 *USCIS Policy Manual* F.2(B)(2), https://www.uscis.gov/policymanual (stating that in a final merits determination USCIS officers should then evaluate the evidence together

when considering the petition in its entirety to determine if the petitioner has established by a preponderance of the evidence the required high level of expertise of the immigrant classification). In this matter, we determine that the Petitioner has not documented his eligibility.

Congress set a very high benchmark for aliens of extraordinary ability by requiring a petitioner demonstrate "sustained national or international acclaim" and present "extensive documentation" to show his or her achievements have been recognized in the field. Section 203(b)(1)(A)(i) of the Act. "In creating the 'extraordinary ability' visa, Congress hoped to 'draw the world's best and brightest to American shores' by giving 'preferential treatment to highly talented immigrants.'" *Branski v. USCIS*, No. 25-CV-1695, 2026 WL 2427439, at *11 (E.D. Wis. Aug. 19, 2026) (quoting *Amin*, 24 F.4th at 386).

The two-step adjudication process is an interpretive rule that does not violate the Administrative Procedure Act, nor is it a legislative rule. *Taneja v. USCIS*, No. 24-CV-05657 (RER), 2026 WL 1734266, at *8 (E.D.N.Y. June 16, 2026); *Nagaiah v. Allen*, 784 F. Supp. 3d 798, 810 (E.D. Pa. 2025); *Agrawal v. Miller*, No. 4:24CV3143, 2025 WL 2879217, at *12 (D. Neb. Sept. 12, 2025); *Etsy, Inc. v. Jaddou*, No. 4:22CV3022, 2023 WL 3689555, at *23 (D. Neb. May 25, 2023) (citing *Perez v. Mortg. Bankers Ass'n*, 575 U.S. 92, 96 (2015). This approach is rooted in an exhaustive historical review of the congressional record, the governing statutory language, and the comprehensive regulatory scheme intended to ensure only those at the very top of their field receive this classification.

To date, no other federal court has offered an alternative framework that is similarly grounded in such a thorough analysis of the legislative and agency history. *See generally* 6 *USCIS Policy Manual*, *supra*, F.2(B)(2).

The Petitioner listed himself as a storyteller on the petition, and repeatedly in correspondence supporting the filing. As he relies on that characterization, it is his burden to explain how his accomplishments factor into that occupation. SCOPS issued its determination under several categories of evidence within their final merits determination. SCOPS concluded favorably relating to media coverage and his judging performance, but intimated that simply meeting the individual regulatory criteria for those requirements was not a sufficient showing when considering the totality of the evidence. SCOPS discussed his performance in a leading or critical role and decided the record did not demonstrate he is one of "that small percentage who have risen to the very top of the field of endeavor."

On appeal, the Petitioner places some of his focus on the individual criteria that SCOPS denied, but as the satisfaction of additional criteria would make no difference in a final merits determination, it is unnecessary that we evaluate whether we would conclude any differently for any criterion. *See Nagaiah*, 784 F. Supp. 3d at 819 (finding that unless the petitioner can show that USCIS erred at step two of the final merits determination, the error he complains about at step one is harmless); *Churyumov v. U.S. Citizenship & Immigr. Servs.*, No. 2:18-CV-00841-RAJ, 2019 WL 5802041, at *3 (W.D. Wash. Nov. 7, 2019), *aff'd*, No. 19-36094, 2022 WL 1657356 (9th Cir. May 25, 2022) (finding that regardless of the alien's claim of meeting more than three criteria, once they meet the threshold in step one USCIS may move to a final merits to evaluate eligibility in step two).

Instead, the question in step two is whether he has demonstrated, his sustained national or international acclaim while also showing that he is one of the small percentage at the very top of the field of endeavor, and that his achievements have been recognized in the field through extensive

documentation. The Petitioner's appeal brief focuses on his accolades, but he does not address the requirement that he demonstrate his overall record illustrates that he is among those at the top of the field. The Petitioner may not limit his achievements to one portion of the final merits determination and ignore the requirement that he show he is among the top echelon in his field. *See* 8 C.F.R. § 204.5(h)(2).

In fact, the only time he addresses the top of the field requirement in the appeal is to assert that it is unnecessary that he make such a showing as a recent district court opinion concluded "that USCIS arbitrarily and capriciously adopted its 'final merits determination' and the court found the 'finds the two-tier analysis was not valid at its inception.'" The opinion the Petitioner references is *Mukherji v. Miller*, No. 4:24CV3170, 2026 WL 895708, at *6 (D. Neb. Jan. 28, 2026). We begin noting the *Mukherji* court's determination has been rejected not only before it made it (*Nagaiah*, 784 F. Supp. 3d at 818; *Agrawal*, 2025 WL 2879217, at *17), but also since (*Taneja*, 2026 WL 1734266, at *6–8; *Da Silva Trajano v. USCIS*, No. CV 25-12388-FDS, 2026 WL 2137917, at *8 (D. Mass. July 24, 2026); *Branski*, 2026 WL 2427439, at *7–10; *Vernekar v. Miller*, No. 4:26CV3105, 2026 WL 2689561 (D. Neb. Sept. 8, 2026)).

The *Mukherji* court noted that in 1995 the former Immigration and Naturalization Service proposed a two-step adjudicative process. The court also observed that the Office of Personnel Management's (OPM) docket showed that the 1995 notice of proposed rulemaking (NPRM) was classified as a substantive rule. Based on that classification of the entire NPRM, the court treated the two-step process as the sole reason the proposed rule was a substantive or legislative rule, and it did not evaluate whether the numerous other provisions within the proposed rule might have been the basis for OPM's classification.

On that understanding, the court concluded that the two-step adjudicative process constituted a legislative or substantive rule that could be implemented only through notice-and-comment rulemaking under the Administrative Procedure Act. In doing so, the court did not fully engage with USCIS' stated rationale for adopting the two-step process, namely that a federal circuit court required it, and that using one approach within that circuit and a different approach elsewhere was not prudent or feasible. USCIS' implementing memorandum discussed the circuit court's decision in detail and expressly adopted that approach. USCIS respectfully submits that this explanation satisfies any obligation to articulate a rational basis for the policy change.

In addition, the *Mukherji* decision did not appear to address how that petitioner's satisfaction of the criteria in that case related to the method of adjudication. The court ordered approval of the petition without analyzing whether any favorable determinations made at step one had been reached under the prior approach in which USCIS did not conduct a qualitative sustained-acclaim analysis under each individual criterion. The five criteria the court found satisfied (awards, published material, judging, contributions, and leading or critical role) thus were not adjudicated in the manner the court seemed to contemplate reinstating. USCIS respectfully submits that this omission was not harmless, because it bears directly on whether the court's remedy accords with the adjudicative framework it preferred.

Now to the primary portion of the district court opinion the Petitioner relies on to allege that he is not required to show he is among the top percent of individuals in his field. USCIS understands Congress to have intended that qualifying candidates for this immigration benefit be among those at the top of their field. The House Judiciary Committee explained: "In short, admission under this category is to

be reserved for that small percentage of individuals who have risen to the very top of their field of endeavor." H.R. Rep. 101-723, 59 (Sept. 19, 1990), reprinted in 1990 U.S.C.C.A.N. 6710, 1990 WL 200418 at *6739 (House Committee Report). *Mukherji*, however, understood the legislative history differently, stating that the Conference Report on the Senate bill that ultimately became law "says absolutely nothing" about a requirement that persons seeking priority-worker extraordinary ability classification be part of "that small percentage of individuals who have risen to the very top of their field" or any similar formulation. H.R. Conf. Rep. 101-955, 101st Cong., 2d Sess. (Oct. 26, 1990).

USCIS respectfully reads the legislative history differently. The "Senate Bill" material the court cited is from a Conference Report, while the "small percentage" language appears in a House Judiciary Committee Report. These documents serve different functions in the legislative process. When a conference report does not address a particular substantive issue, as is the case here, the committee reports that originally developed and explained the provision remain the most authoritative evidence of congressional intent. *See Zuber v. Allen*, 396 U.S. 168, 186 (1969) (noting that committee reports "represent the considered and collective understanding of those Congressmen involved in drafting and studying proposed legislation"); *Garcia v. United States*, 469 U.S. 70, 76 (1984) (explaining that "[i]n surveying legislative history we have repeatedly stated that the authoritative source for finding the Legislature's intent lies in the Committee Reports on the bill").

The House Judiciary Committee Report, H.R. Rep. 101-723, supplies the substantive explanation of Congress's intent for the Immigration Act of 1990's extraordinary-ability classification, including the "small percentage" formulation. As summarized by the Congressional Research Service, committee reports typically outline the need and purpose of legislation and may include statements of legislative intent to guide both the executive branch in implementation and the judiciary in interpretation. *See Committee Reports: Required Contents*, Congressional Research Service Products (Library of Congress) (Jan. 22, 2008).

By contrast, the Conference Report, H.R. Conf. Rep. 101-955, primarily reconciles differences between the House and Senate versions and describes how those differences were resolved. Its focus is on the compromise text rather than on restating all underlying policy judgments that were already addressed in the committee reports. A conference report is just the final, official version of a compromise bill that only lists the specific legal text and the formal steps the House and Senate must take to pass it. *Conference Reports and Joint Explanatory Statements*, CONGRESS.GOV (Jun. 11, 2015), https://www.congress.gov/crs-product/98-382. In that light, the Conference Report's silence on the "top of the field" requirement is most reasonably understood as reflecting acceptance, rather than rejection, of the House Judiciary Committee's previously articulated intent.

Accordingly, USCIS respectfully understands H.R. Rep. 101-723 to remain the controlling statement of congressional intent on this point. That understanding is reflected in 8 C.F.R. § 204.5(h)(2), which requires "a level of expertise indicating that the individual is one of that small percentage who have risen to the very top of the field of endeavor." As the Petitioner has limited his arguments on the top of the field requirement to be that it is unlawful, and because we have demonstrated that view is incorrect, he has failed to overcome this adverse element in SCOPS' denial decision.

III. CONCLUSION

For the reasons discussed above, the Petitioner has not demonstrated his eligibility as an alien of extraordinary ability. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision. In visa petition proceedings, it is a petitioner's burden to establish eligibility for the immigration benefit sought. The Petitioner has not met that burden here.

ORDER: The appeal is dismissed.

NOTICE: This constitutes the final decision in this matter. The filing of a motion will not postpone the effect of the decision. 8 C.F.R. § 103.5(a)(1)(iv). Aliens who are not lawfully present, or who are otherwise inadmissible or deportable, may be subject to the commencement of removal proceedings under section 240 of the Act through the issuance of a Form I-862, Notice to Appear. Those proceedings may result in their removal from the United States and possible ineligibility for future visas or other immigration benefits.